

IC-1

District Schedule

1 INTENT AND OVERVIEW

1.1 Intent

The intent of this schedule is to permit light industrial uses, including those with a significant amount of research and development activity, that are generally compatible with one another and with adjoining residential or commercial districts. Commercial uses compatible with and complementing light industrial uses are also permitted.

The intent of external design regulations for sites on Main Street is to achieve a form of development compatible with the function and character of abutting major streets, and specifically to achieve building continuity along major streets in the district.

1.2 Overview

The table below provides an overview of outright and conditional approval uses in the IC-1 district, categorized by the minimum site area required, where applicable. Applicable density, form and placement regulations in section 3 of this schedule are cross-referenced in the third column.

Minimum Site Area	Use	Density, Form and Placement Regulations
--	All uses in section 2.1 of this schedule	3.1

2 USE REGULATIONS

2.1 Outright and Conditional Approval Uses

All outright and conditional approval uses are subject to all other provisions of this by-law, including [Section 2](#), [Section 10](#) and [Section 11](#), and compliance with the regulations of this schedule including section 2.2.

The uses identified in the table below as outright approval uses are permitted in these districts and will be issued a permit.

The uses identified in the table below as conditional approval uses may be approved in these districts by the Director of Planning or Development Permit Board, with or without conditions, if the Director of Planning or Development Permit Board considers:

- (a) the intent of this schedule and all applicable Council policies and guidelines; and
- (b) the submission of any advisory group, property owner or tenant.

Uses are listed under their general land use category. Applicable use-specific regulations in section 2.2 of this schedule are cross-referenced in the third column. Cross-references to applicable use-specific regulations are provided for information purposes only and do not form part of this by-law.

Use	Approval	Use-Specific Regulations
Agricultural Uses		
Urban Farm - Class B	Conditional	2.2.1
Cultural and Recreational Uses		
Artist Studio - Class A, provided that the use must not be combined with a Residential Unit	Outright	2.2.2
Artist Studio - Class A, not permitted as an outright approval use	Conditional	2.2.1
Artist Studio - Class B	Conditional	2.2.1
Arts and Culture Event	Outright	2.2.2
Club	Conditional	2.2.1
Fitness Centre	Conditional	2.2.1
Park or Playground	Conditional	2.2.1
Dwelling Uses		
Dwelling Unit	Conditional	2.2.1, 2.2.3
Residential Unit associated with and forming an integral part of an Artist Studio	Conditional	2.2.1, 2.2.4
Institutional Uses		
Ambulance Station	Conditional	2.2.1
Public Authority Use	Conditional	2.2.1
Social Service Centre	Conditional	2.2.1
Manufacturing Uses		
Bakery Products Manufacturing	Outright	2.2.2
Batteries Manufacturing	Outright	2.2.2
Brewing or Distilling	Conditional	2.2.1
Chemicals or Chemical Products Manufacturing - Class A	Conditional	2.2.1
Chemicals or Chemical Products Manufacturing - Class B	Outright	2.2.2
Clothing Manufacturing	Outright	2.2.2

Use	Approval	Use-Specific Regulations
Dairy Products Manufacturing	Outright	2.2.2
Electrical Products or Appliances Manufacturing	Outright	2.2.2
Food or Beverage Products Manufacturing - Class A	Conditional	2.2.1
Food or Beverage Products Manufacturing - Class B	Outright	2.2.2
Furniture or Fixtures Manufacturing	Outright	2.2.2
Ice Manufacturing	Outright	2.2.2
Information Communication Technology Manufacturing	Outright	2.2.2
Jewellery Manufacturing	Outright	2.2.2
Leather Products Manufacturing	Outright	2.2.2
Linoleum or Coated Fabrics Manufacturing	Conditional	2.2.1
Machinery or Equipment Manufacturing	Conditional	2.2.1
Metal Products Manufacturing - Class B	Conditional	2.2.1
Miscellaneous Products Manufacturing - Class A	Conditional	2.2.1
Miscellaneous Products Manufacturing - Class B	Outright	2.2.2
Motor Vehicle Parts Manufacturing	Conditional	2.2.1
Non-Metallic Mineral Products Manufacturing - Class A	Conditional	2.2.1
Non-Metallic Mineral Products Manufacturing - Class B	Outright	2.2.2
Paper Products Manufacturing	Outright	2.2.2
Plastic Products Manufacturing	Outright	2.2.2
Printing or Publishing	Outright	2.2.2
Rubber Manufacturing	Conditional	2.2.1
Rubber Products Manufacturing	Outright	2.2.2
Shoes or Boots Manufacturing	Outright	2.2.2
Textiles or Knit Goods Manufacturing	Conditional	2.2.1
Tobacco Products Manufacturing	Outright	2.2.2
Transportation Equipment Manufacturing	Conditional	2.2.1
Vegetable Oil Manufacturing	Conditional	2.2.1
Wood Products Manufacturing - Class B	Outright	2.2.2
Office Uses		
General Office	Outright	2.2.2
Parking Uses		
Parking Uses	Conditional	2.2.1
Retail Uses		
Farmers' Market	Conditional	2.2.1, 2.2.5

Use	Approval	Use-Specific Regulations
Furniture or Appliance Store	Outright	2.2.2
Gasoline Station - Full Serve	Outright	2.2.2
Gasoline Station - Split Island	Conditional	2.2.1
Public Bike Share	Conditional	2.2.1
Retail Store	Outright	2.2.2
Shared E-Scooter System	Conditional	2.2.1
Vehicle Dealer	Outright	2.2.2
Service Uses		
Animal Clinic or Shelter	Outright	2.2.2
Animal Services	Outright	2.2.2
Auction Hall	Conditional	2.2.1
Beauty and Wellness Centre	Conditional	2.2.1, 2.2.7
Catering Establishment	Outright	2.2.2
Laboratory	Outright	2.2.2
Laundry or Cleaning Plant	Outright	2.2.2
Motor Vehicle Repair Shop	Outright	2.2.2
Motor Vehicle Wash	Outright	2.2.2
Photofinishing or Photography Laboratory	Outright	2.2.2
Photofinishing or Photography Studio	Outright	2.2.2
Print Shop	Outright	2.2.2
Production or Rehearsal Studio	Outright	2.2.2
Repair Shop - Class A	Outright	2.2.2
Repair Shop - Class B	Outright	2.2.2
Restaurant - Class 1	Outright	2.2.2, 2.2.6
School - Arts or Self-Improvement	Outright	2.2.2
School - Business	Outright	2.2.2
School - Vocational or Trade	Outright	2.2.2
Sign Painting Shop	Outright	2.2.2
Work Shop	Outright	2.2.2
Transportation and Storage Uses		
Booming Ground	Conditional	2.2.1
Cold Storage Plant	Outright	2.2.2
Marine Terminal or Berth	Conditional	2.2.1
Mini-Storage Warehouse	Conditional	2.2.1

Use	Approval	Use-Specific Regulations
Packaging Plant	Outright	2.2.2
Storage Warehouse	Outright	2.2.2
Storage Yard	Conditional	2.2.1
Taxicab or Limousine Station	Conditional	2.2.1
Truck Terminal or Courier Depot	Conditional	2.2.1
Weighing or Inspection Station	Conditional	2.2.1
Works Yard	Conditional	2.2.1
Utility and Communication Uses		
Public Utility	Conditional	2.2.1
Radiocommunication Station	Outright	2.2.2
Recycling Depot	Conditional	2.2.1
Wholesale Uses		
Cardlock Fuel Station	Conditional	2.2.1
Lumber and Building Materials Establishment	Outright	2.2.2
Wholesaling - Class A	Outright	2.2.2
Wholesaling - Class B	Outright	2.2.2
uncategorized		
Accessory Buildings, customarily ancillary to any use listed in this section 2.1	Outright	2.2.2 , 2.2.8
Accessory Uses, customarily ancillary to any outright approval use listed in this section 2.1 , other than accessory retail use in combination with outright approval wholesale uses listed in this section 2.1	Outright	2.2.2 , 2.2.9
Accessory Uses, customarily ancillary to any conditional approval use listed in this section 2.1	Conditional	2.2.1 , 2.2.10
Accessory Uses, customarily ancillary to any use listed in this section 2.1 and not permitted as an outright approval use or otherwise permitted as a conditional approval use	Conditional	2.2.1
Any other use that is not specifically listed and defined as a use in Section 2 of this by-law	Conditional	2.2.1 , 2.2.11
Any outright approval use listed in this section 2.1 that does not comply with section 2.2.2(a) of this schedule	Conditional	2.2.1

2.2 Use-Specific Regulations

2.2.1 Conditional approval uses listed in section [2.1](#) of this schedule:

- (a) except for beauty and wellness centre, cardlock fuel station, gasoline station - split island, public bike share, shared e-scooter system, and outdoor eating area in combination with a club, must be carried on wholly within a completely enclosed building unless appropriate measures are taken, to the satisfaction of the Director of Planning, to eliminate any dangerous, injurious, noxious or otherwise objectionable impact that could adversely affect the surrounding area and adjoining non-industrial districts and, in the case of outdoor eating area, subject to any conditions that the Director of Planning considers necessary, having regard to the area and location of the eating area with respect to adjoining sites, the hours of operation and the intent of this schedule;
- (b) must not involve the bulk storage, pending ultimate distribution off-site, of: compressed gas, petroleum, coal tar products or derivatives, except for cardlock fuel station and gasoline station - split island; explosives, fireworks, ammunition, matches, or flares; radioactive material; or rags or cotton waste;
- (c) may involve the storage of the following only if they are wholly within a completely enclosed building: fish, fish oil or meal, animal oil or fat, or vegetable oil; fungicides, herbicides or pesticides; grain, hops or sugar; paint, varnish, oil shellac or turpentine; scrap; or toxic or corrosive chemicals or acids;
- (d) may involve the storage of goods or materials only if they are wholly within a completely enclosed building, unless the yard or portion of the yard containing the goods or materials is enclosed by a suitable fence or wall restricting public access; and
- (e) may involve the storage of goods or materials or the placement of machinery or of refuse or garbage receptacles only if they are wholly within a completely enclosed building, unless they are adequately screened from view from any adjacent R district, or any R district across an adjacent street or lane, by evergreen planting, wall, or fence and related landscaping that is acceptable to the Director of Planning.

2.2.2 Outright approval uses listed in section 2.1 of this schedule:

- (a) except for animal clinic or shelter, animal services, arts and culture event gasoline station - full serve, lumber and building materials establishment, and outdoor eating area in combination with a restaurant or retail store, must be carried on wholly within a completely enclosed building, except for off-street parking and loading, heating or mechanical equipment, or other facilities or equipment that the Director of Planning considers similar to the foregoing and, in the case of outdoor eating area, subject to any conditions that the Director of Planning considers necessary, having regard to the area and location of the eating area with respect to adjoining sites, the hours of operation and the intent of this schedule; and
- (b) must not involve the bulk storage, pending ultimate distribution off-site, of: compressed gas, petroleum, coal tar products or derivatives, except for gasoline station - full serve; explosives, fireworks, ammunition, matches, or flares; radioactive material; or rags or cotton waste.

2.2.3 Dwelling unit may be permitted in combination with any use listed in section 2.1 of this schedule if:

- (a) it is for a caretaker or other person similarly employed; and
- (b) such dwelling unit is considered to be essential to the operation of the business or establishment.

- 2.2.4 Residential unit associated with and forming an integral part of an artist studio may be permitted if:
- (a) the change of use applies to floor area existing as of February 26, 2013; and
 - (b) additions are limited to a maximum of 10% of the existing floor area.
- 2.2.5 Farmers' market may be permitted if the Director of Planning considers the appropriateness of the use with respect to compatibility with nearby sites, parking, traffic, noise, hours of operation, size of facility and pedestrian amenity.
- 2.2.6 Restaurant - class 1 is permitted as an outright approval use if the floor area does not exceed 65 m².
- 2.2.7 Beauty and Wellness Centre is limited to hydrotherapy and thermal therapy.
- 2.2.8 Accessory buildings customarily ancillary to any use listed in section 2.1 of this schedule are permitted as an outright approval use if:
- (a) no accessory building exceeds 3.7 m in height, measured to:
 - (i) the highest point of a flat roof,
 - (ii) the deck line of a mansard roof, or
 - (iii) the mean height between the eaves and the ridge of a gable, hip or gambrel roof,
 provided that no portion of an accessory building exceeds 4.6 m in building height;
 - (b) an accessory building is located:
 - (i) in the rear yard, and
 - (ii) at least 3.1 m from the ultimate centre line of any rear or flanking lane; and
 - (c) the total floor area of an accessory building, measured to the extreme outer limits of the building, does not exceed 10% of the total site area.
- 2.2.9 Accessory uses customarily ancillary to any outright approval use listed in section 2.1 of this schedule, other than accessory retail use in combination with outright approval wholesale uses listed in section 2.1 of this schedule, are permitted if:
- (a) the total floor area of all accessory uses does not exceed 33.3% of the gross floor area of the principal and accessory uses combined, unless the accessory use is permitted as an outright approval use pursuant to section 2.1 of this schedule; and
 - (b) the floor area in accessory retail use, other than accessory retail use associated with an artist studio, is separated from the floor area in all other uses by a wall, and the other uses are not accessible to the public.
- 2.2.10 Accessory uses customarily ancillary to any conditional approval use listed in section 2.1 of this schedule must comply with the provisions of section 2.2.9 above.

- 2.2.11 Any other use that is not specifically listed and defined as a use in [Section 2](#) of this by-law may be permitted as a conditional approval use if the Director of Planning considers the use to be comparable in nature to the uses listed in [section 2.1](#) of this schedule, having regard to the intent of this schedule.

3 DENSITY, FORM AND PLACEMENT REGULATIONS

This section contains density, form and placement regulations organized by use.

3.1 All Uses

All uses in these districts are subject to the following regulations.

3.1.1 Density and Floor Area

3.1.1.1 The maximum floor space ratio is 3.00, subject to the following allocations:

- (a) the maximum floor space ratio is 3.00 for manufacturing uses, transportation and storage uses, and wholesaling - class A; and
- (b) the maximum floor space ratio is 1.00 for all other uses combined, except that:
 - (i) the maximum floor space ratio may be increased to 1.50 for any office use ancillary to a manufacturing use, if:
 - (A) the principal use or uses only includes manufacturing, and
 - (B) the total floor area of all accessory uses does not exceed 50% of the gross floor area of all principal and accessory uses combined,
 - (ii) the floor area for retail uses, including accessory retail use, must not exceed 1000 m², and
 - (iii) the floor area for a lounge use accessory to brewing or distilling must not exceed:
 - (A) 80 m² for any portion of the lounge use located within the principal building, and
 - (B) 80 m² for any portion of the lounge use located outside the principal building.

3.1.2 Building Form and Placement

Regulations	IC-1
3.1.2.1 Maximum building height	18.3 m
3.1.2.2 Minimum side yard width for a side yard that:	
(a) adjoins a site located in any R district, without the intervention of a lane	1.5 m
(b) does not adjoin a site located in an R district	not required
3.1.2.3 Minimum rear yard depth	3.1 m

Building Height

- 3.1.2.4 Despite the maximum building height in section 3.1.2.1 above, in the case of a building or part of a building on Main Street, the maximum building height at the street property line is 12.2 m and:
- no portion of the building may protrude above an envelope formed by a vertical line at the street property line and a plane formed by an angle of 135 degrees measured from the vertical and having its vertex at the maximum building height permitted at the street property line; and
 - in the case of a corner site, the provisions of section 3.1.2.4(a) above apply at both street property lines.

Side Yard

- 3.1.2.5 Despite the minimum side yard width in section 3.1.2.2(b) above, where a side yard is provided, although not required, the minimum side yard width is 0.9 m.

Rear Yard

- 3.1.2.6 Despite the minimum rear yard depth in section 3.1.2.3 above, where the rear of a site abuts a lane, the required minimum rear yard depth will be decreased by the distance between the rear property line and the ultimate centre line of the lane.
- 3.1.2.7 The Director of Planning may waive the requirement to provide a rear yard if the Director of Planning is satisfied that the site is located within an area where rear access to the site and adjacent sites is not likely to be required.

Diagram: Building placement for principal building

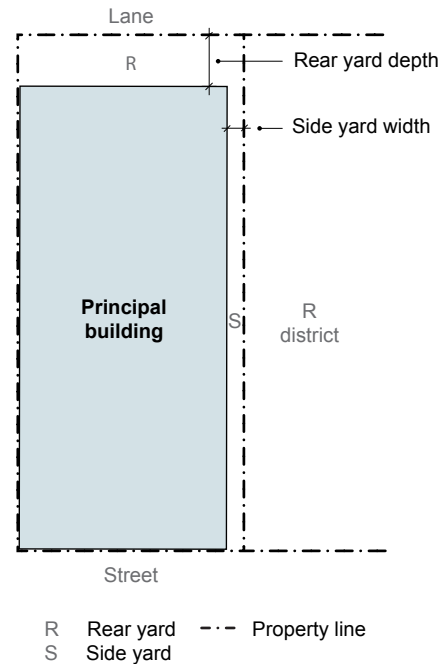
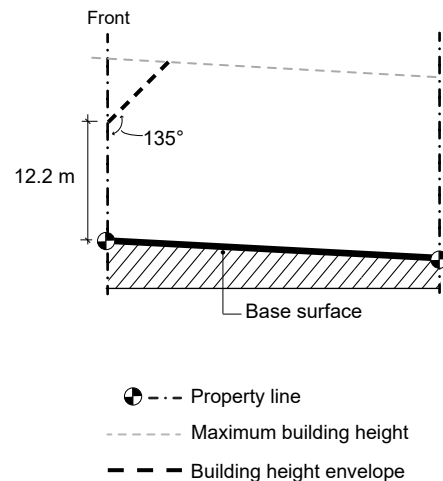


Diagram: Maximum building height envelope



4 GENERAL REGULATIONS

All uses in these districts are subject to the following regulations.

4.1 Computation of Floor Area

- 4.1.1 Computation of floor area must include all floors of all buildings including accessory buildings, both above and below ground level, measured to the extreme outer limits of the building.
- 4.1.2 Computation of floor area must exclude:
- (a) balconies and decks, and any other appurtenances that the Director of Planning considers similar to the foregoing, provided that the total area of these exclusions does not exceed 12% of the permitted floor area;
 - (b) patios and roof decks, if the Director of Planning considers the impact on privacy and overlook;
 - (c) where floors are used for off-street parking and loading, the taking on or discharging of passengers, bicycle storage, heating and mechanical equipment, or uses that the Director of Planning considers similar to the foregoing, those floors or portions thereof, which are located at or below base surface, provided that the maximum exclusion for a parking space does not exceed 7.3 m in length;
 - (d) amenity areas, including child day care facilities, recreation facilities and meeting rooms accessory to a dwelling use, to a maximum area of 10% of the total permitted floor area; and
 - (e) storage area associated with an artist studio where the area is provided below the base surface, to a maximum exclusion of 20 m² for each artist studio.

4.2 External Design

- 4.2.1 This section 4.2 applies to sites on Main Street.
- 4.2.2 For the purposes of this section 4.2, the street property line is the property line along an abutting street but not a lane.
- 4.2.3 Building continuity must be achieved at the street property line as follows:
- (a) no yard is permitted along a street property line, except for a required setback, side or rear yard, and yard established by building line;
 - (b) the first storey must include the main pedestrian entrance and facilities serving the public, such as reception area or lobby and showroom or display area, which must be oriented with maximum visibility to the abutting street or, in the case of a corner site, the widest abutting street;
 - (c) where a building occupies a corner site, architectural features, lighting, signage, and related facade characteristics must be located so as to orient the building to the widest abutting street;

- (d) transparent window area must comprise at least 80% of the exterior wall surface of the first storey along an abutting street and 40% of the exterior wall surface on every upper storey along an abutting street; and
- (e) no portion of the floor of the first storey along an abutting street may be more than 1.0 m above or below grade at the street property line.

4.2.4 Garbage and recycling container storage areas, heating and mechanical equipment, and off-street parking and loading facilities must be enclosed, located or screened so as not to be visible from the centre line of an abutting street.

4.2.5 Except for gasoline station - full-serve, gasoline station - split island, cardlock fuel station, and outdoor eating area any use that is not carried on wholly within a completely enclosed building, including parking use, must be set back 1.2 m from the street property line at an abutting street and screened by evergreen planting, a wall or fence with related landscaping, so as not to be visible from the centre line of any abutting street.